

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jon Liroff	Team: Team # 4	CCRB Case #: 200700641	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/12/2007 12:30 PM, Saturday, 01/13/2007 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/12/2008	Precinct: 90		
Date/Time CV Reported Sat, 01/13/2007 12:36 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 01/13/2007 12:36 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenneth Douglas	01703	906146	090 PCT
2. SGT Kenneth Tysdal	03827	915998	090 PCT
3. POM Michael Manaloris	04643	928692	090 PCT
4. POM Dennis Ferrer	02919	921334	090 PCT
5. POM Winston Willabus	25301	935969	090 PCT
6. SGT Edward Monahan	02171	907724	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Hutchinson	18979	930384	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kenneth Douglas	Abuse: PO Kenneth Douglas facilitated the questioning of § 87(2)(b)	A . Unsubstantiated
B . POM Dennis Ferrer	Abuse: PO Dennis Ferrer questioned § 87(2)(b)	B . Exonerated
C . POM Michael Manaloris	Abuse: PO Michael Manaloris questioned § 87(2)(b)	C . Exonerated
D . POM Dennis Ferrer	Abuse: PO Dennis Ferrer frisked and searched § 87(2)(b)	D . Unsubstantiated
E . POM Michael Manaloris	Discourtesy: PO Michael Manaloris spoke obscenely to § 87(2)(b) and an unknown female.	E . Unsubstantiated
F . POM Winston Willabus	Abuse: PO Winston Willabus detained § 87(2)(b)	F . Substantiated
G . POM Dennis Ferrer	Abuse: PO Dennis Ferrer detained § 87(2)(b)	G . Substantiated
H . POM Michael Manaloris	Abuse: PO Michael Manaloris detained § 87(2)(b)	H . Substantiated
I . SGT Kenneth Tysdal	Abuse: Sgt. Kenneth Tysdal authorized the strip-search of § 87(2)(b)	I . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Synopsis

At approximately 12:30 PM on January 12, 2007, § 87(2)(b) went to visit his friend, § 87(2)(b) at § 87(2)(b) in Brooklyn. This building is managed by the New York City Housing Authority and is known to the NYPD as a drug-prone location. Approximately 45 minutes later, § 87(2)(b) exited the building and was observed doing so by PO Kenneth Douglas and PO Winston Willabus of the 90th Precinct SNEU team. These officers were parked in a car across the street and PO Douglas radioed PO Dennis Ferrer and PO Michael Manloris, informing them that they should question § 87(2)(b) (**Allegation A**). Accordingly, PO Manloris and PO Ferrer approached § 87(2)(b) several blocks from § 87(2)(b), asked him to identify himself and questioned him regarding his presence at the building. (**Allegations B and C**). § 87(2)(b) was evasive and refused to answer certain questions because he felt he did not have to. During the stop, PO Ferrer frisked and searched § 87(2)(b) (**Allegation D**). PO Manloris was said to have pulled out his extendable baton and dropped it, causing a woman to protest that it almost hit her, to which he allegedly responded, "Get the fuck out of here." PO Manloris also allegedly made several obscene comments to § 87(2)(b) that the latter could not precisely recall. (**Allegation E**) Although § 87(2)(b) was not found to be in possession of any contraband, and had only been observed entering and exiting and NYCHA building, he was handcuffed and placed in the back of a patrol car. (**Allegations F, G and H**). § 87(2)(b) was removed to the 90th Precinct and lodged under a charge of trespassing. Sgt. Kenneth Tysdal then authorized PO Willabus to strip-search § 87(2)(b) but no contraband was recovered. (**Allegation I**) § 87(2)(b) provided contact information for § 87(2)(b) and was released when PO Douglas confirmed that § 87(2)(b) had prior authorization to be there. The arrest was then voided.

§ 87(2)(g)
§ 87(2)(g), it is recommended that **Allegations A** be closed **Unsubstantiated**, that **Allegations B and C** be closed **Exonerated** and that **Allegation D** be closed **Unsubstantiated**. § 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation E** be closed **Unsubstantiated**. § 87(2)(g)
§ 87(2)(g) it is recommended that **Allegations F, G and H** be closed **Substantiated**. § 87(2)(g)
§ 87(2)(g), § 87(4-b)
it is recommended that **Allegation I** be closed **Substantiated**.

This case was originally assigned to the undersigned investigator. § 87(2)(b) the majority of officer interviews were conducted by former CCRB Investigator Theodore Stewart-Franzen, to whom the case was formally reassigned on July 26, 2007. Upon Inv. Stewart-Franzen's departure from the CCRB, the case was again assigned to the undersigned investigator.

Summary of Complaint

§ 87(2)(b) – Complainant/Victim – Encl. 3-6

§ 87(2)(b) is a § 87(2)(b) black male who stands § 87(2)(b) and weighs § 87(2)(b). He is a graduate of § 87(2)(b) and does § 87(2)(b) for § 87(2)(b)

§ 87(2)(b) was interviewed in-person at the CCRB on January 19, 2007 (enclosure 6). § 87(2)(b) stated that at approximately 12:30 PM on January 12, 2007 he exited § 87(2)(b) in Brooklyn after getting a haircut from a man named § 87(2)(b) who cuts § 87(2)(b)'s hair approximately once a week. § 87(2)(b) was inside the building for approximately 45 minutes.

§ 87(2)(b) exited the building, unchained his bicycle and walked it approximately four blocks to the intersection of § 87(2)(b) and § 87(2)(b) where he went to mount the bike and ride down § 87(2)(b). § 87(2)(b) was wearing a camouflage baseball cap, black jacket, red shirt, black pants and white sneakers. § 87(2)(b) also had his bicycle chain – large gauge metal links – wrapped around his waist. At that point a silver unmarked four door sedan pulled up and three plainclothes officers approached § 87(2)(b). The investigation determined that these officers were PO Michael Manaloris and PO Dennis Ferrer, as well as PO Winston Willabus, who in fact arrived in a second vehicle. The officers asked § 87(2)(b) if he had just exited § 87(2)(b). § 87(2)(b) confirmed this but was intentionally evasive when they asked further questions as he felt they were violating his rights since he had done nothing wrong. The officers told § 87(2)(b) that § 87(2)(b) was a drug-prone location.

As they spoke, PO Manaloris removed and extended an asp, holding it by his side. § 87(2)(b) did not really notice this at first as he did not know what it was. PO Manaloris did not menace § 87(2)(b) with it but merely held it down at his side. A black female walked by – the intersection was busy with numerous civilians shopping and walking – and PO Manaloris dropped the asp. The female told PO Manaloris he nearly dropped it on her foot and he told her that this did not concern her and to “get the fuck out of here.” The officers continued to question § 87(2)(b) and he told them he had no contraband on his person and told them that they could go ahead and “check” him if they wanted because he had nothing to hide. The officers asked if § 87(2)(b) had any sharp objects in his pockets and he stated that he did not. They then frisked the outside of his clothes and searched inside his pant pockets and the pockets of his shirt and jacket. § 87(2)(b) consented to this search. The search revealed no contraband.

An officer asked § 87(2)(b) for his ID and he produced his New York State driver’s license and gave it to them. An officer held it in his hand but § 87(2)(b) did not see if he returned to the vehicle to run it in the computer. PO Manaloris then told § 87(2)(b) that because he did not want to answer their questions the officers were going to arrest him and take him to the precinct. § 87(2)(b) was handcuffed and placed in the car. He did not recall which officer handcuffed him or which officer was driving. § 87(2)(b) asked the officers if they were going to leave his bike there – lying on the ground – and they put it in the trunk. § 87(2)(b) still had his bike chain around his waste and in fact never removed it during the incident.

At the stationhouse the officers brought § 87(2)(b) in front of the desk officer – a white male – who asked what § 87(2)(b) was arrested for. § 87(2)(b) did not recall what the officers said to the desk officer and did not recall if they asked the desk officer to authorize a strip-search. The officers then escorted § 87(2)(b) toward the back of the stationhouse near the holding cells, where there was a bathroom.

PO Willabus told § 87(2)(b) to back into the bathroom because there were females nearby. § 87(2)(b) noted a female in one of the holding cells who was sleeping. There were no other civilians in the holding cells. § 87(2)(b) complied and PO Willabus told him to remove his shirt, socks and pants and to lower his underwear – exposing his genitals and anus – and squat. § 87(2)(b) complied and no contraband was recovered. § 87(2)(b) was then placed in a holding cell for approximately 2 ½ hours. During this time the officers asked § 87(2)(b) for his full name and any aliases – presumably to check for warrants – but none were found. They also asked if he had anyone who could come and pick up his property because they were going to put him through the system for trespassing. § 87(2)(b) provided the officers with contact information for § 87(2)(b) and they called and asked if he knew § 87(2)(b) which he did. § 87(2)(b) was then released without a summons or any documentation regarding his arrest.

§ 87(2)(b) stated that PO Manaloris also used obscenities when speaking to him – answer the “fucking questions” etc. – but he could not recall precisely what the officer said.

§ 87(2)(b) was interviewed again at the CCRB on February 13, 2007 (enclosure 7) and was shown the following photographic array:

- 1 – PO Winston Willabus
- 2 – PO Kenneth Douglas
- 3 – PO Michael Manaloris
- 4 – Sgt. Kenneth Tysdal
- 5 – PO Kevin Hutchinson
- 6 – PO Dennis Ferrer

§ 87(2)(b) positively identified the officer in photograph 2 – PO Douglas – as the officer who let him out of the cells and who called § 87(2)(b) to verify that he had not trespassed into the building.

§ 87(2)(b) positively identified the officer in photograph 3 – PO Manaloris – as one of the three officers who stopped him on the street, as the officer who drew his extendable baton and as the officer who was “verbally abusive”.

§ 87(2)(b) stated that he was 60% certain that the officer in photograph 1 – PO Willabus – was one of the officers who stopped him initially and was the officer who stripped searched him at the stationhouse.

§ 87(2)(b) stated definitively that the officer who strip-searched him was one of the three officers who stopped him initially. § 87(2)(b) did not recognize the officer in photograph 4 – Sgt. Tysdal – and stated that he did not have any interaction with him.

On § 87(2)(b), § 87(2)(b) filed a notice of claim which stated the following:

“On January 12, 2007, while riding his bicycle, § 87(2)(b) was stopped by three unidentified police officers in plain clothes who stopped, questioned and frisked him. He was later detained for over 3.5 hours at the 90th Precinct and strip-searched and released. No charges were filed against § 87(2)(b). Specifically, § 87(2)(b)'s civil rights were violated. He was illegally held against his will for over 3.5 hours and was humiliated in violation of New York City rules against strip-searches. “

Results of Investigation

Civilian Witnesses

§ 87(2)(b) § 87(2)(b) – *Encl. 7*

§ 87(2)(b) is a § 87(2)(b) black male § 87(2)(b) who resides at § 87(2)(b) in Brooklyn.

§ 87(2)(b) was interviewed on October 29, 2007 and stated that he is a licensed barber and has known § 87(2)(b) for 4-5 years, since § 87(2)(b) used to frequent the barbershop where § 87(2)(b) worked previously. § 87(2)(b) stated that § 87(2)(b) is a friend and that § 87(2)(b) comes to visit him at home from time to time. On a day in January 2007, § 87(2)(b) came to § 87(2)(b) apartment to visit and have his facial hair trimmed. § 87(2)(b) stayed for approximately 1 hour and then left. Later that day, a police officer called § 87(2)(b) and said that § 87(2)(b) was in custody and asked § 87(2)(b) if he knew him and whether he had been at § 87(2)(b) house. § 87(2)(b) informed the officer that § 87(2)(b) had been at his house that day. § 87(2)(b) came by again a few days later and told § 87(2)(b) that he had been wrongfully arrested and that the police had tried to bring some “trumped up” charges against him.

Witness Not Interviewed

§ 87(2)(b) was identified by the prisoner holding pen roster as being the only other prisoner present when § 87(2)(b) was inside of the holding pen. Her arrest report listed a New Jersey address, so efforts were made to contact her at her court date in Brooklyn on § 87(2)(b) (Docket #§ 87(2)(b)). However, § 87(2)(b) was ejected from the court room for being disorderly and did not return when called before the judge. The undersigned investigator left a business card with § 87(2)(b)'s

attorney, who stated that she would provide § 87(2)(b) with the information if and when she saw her client. § 87(2)(b) did not contact the CCRB. No further efforts were made to contact § 87(2)(b) § 87(2)(g)

Officer Identification

PO Kenneth Douglas was identified by § 87(2)(b)'s arrest report. In his CCRB interview he stated that during the incident he was working with the 90th Precinct SNEU team: Sgt. Kenneth Tysdal, PO Michael Manaloris, PO Dennis Ferrer, PO Kevin Hutchinson and PO Winston Willabus. Sgt. Edward Monahan was identified as the desk officer on duty when § 87(2)(b) was brought into the stationhouse from his entries in the command log. These officers all confirmed that they were present during the incident in their respective CCRB interviews.

Officer Statements

PO Kenneth Douglas – Encl. 8-9

The arrest report for § 87(2)(b) indicates that PO Kenneth Douglas was the arresting officer. The arrest took place in front of § 87(2)(b) in Brooklyn at 12:50 PM on January 12, 2007. The narrative section indicates, "At the time and place of occurrence, the arresting officer observed the defendant enter and exit the above listed location without prior authorization of NYC Housing Authority. Further investigation revealed defendant had prior authorization at the time of incident." The report indicates that § 87(2)(b) was charged with two counts of criminal trespass in the third degree.

PO Kenneth Douglas was interviewed at the CCRB on February 7, 2007. He did not have any entries in his memo book regarding this incident. He stated that on January 13, 2007 he was assigned to the 90th Precinct SNEU team with Sgt. Kenneth Tysdal, PO Micheal Manaloris, PO Dennis Ferrer, PO Kevin Hutchinson and PO Winston Willabus. The team was operating in plainclothes and was assigned to two unmarked sedans and an unmarked Ford SUV. PO Douglas was in the SUV with PO Willabus driving. These two officers were set up as an observation post, in the SUV, in the vicinity of § 87(2)(b), approximately 50 feet from the front door.

At approximately 12:30 PM, PO Douglas, using binoculars, observed a bald black male with a bicycle – determined by investigation to be § 87(2)(b) – enter § 87(2)(b) through the front door. PO Douglas then lost sight of § 87(2)(b) for two minutes at which point § 87(2)(b) exited the building with his bicycle. PO Douglas did not observe § 87(2)(b) engage in any drug transaction and had no particular reason to believe that § 87(2)(b) was in possession of drugs at that time. PO Douglas then put over a description of § 87(2)(b) to the field team, indicating that § 87(2)(b) had entered § 87(2)(b) remained inside for 2 minutes and then exited again. PO Douglas did not inform the field team that he observed § 87(2)(b) engaged in a drug transaction or that he believed him to be in possession of narcotics at that time.

§ 87(2)(b) proceeded south on § 87(2)(b), right on § 87(2)(b) toward § 87(2)(b) and PO Douglas then lost sight of him. Soon after, the field team radioed to PO Douglas that they had an individual under arrest for criminal trespass. PO Douglas responded to the 90th Precinct stationhouse and encountered § 87(2)(b) in the holding cells. None of the members of the SNEU team were present in the stationhouse at that time and PO Douglas had no interaction with them regarding § 87(2)(b). No members of the SNEU team informed PO Douglas that § 87(2)(b) had been strip-searched. No members of the SNEU team informed PO Douglas that § 87(2)(b) had been searched, with positive or negative results. No members of the field team informed PO Douglas regarding § 87(2)(b)'s behavior at the scene of the arrest or any explanations he might have given regarding his being present at § 87(2)(b).

PO Douglas obtained § 87(2)(b)'s information and began processing his arrest. He also obtained the name of a friend of § 87(2)(b) with whom § 87(2)(b) stated that he had been visiting. PO

Douglas then called this friend, who described § 87(2)(b) and stated that he had been visiting him at § 87(2)(b). This friend also confirmed that § 87(2)(b) had only visited him for approximately 2 minutes. PO Douglas therefore voided § 87(2)(b)'s arrest and released him.

PO Douglas initially stated that he did not interact with any other members of the SNEU team when he arrived at the stationhouse and that he did not know who brought § 87(2)(b) to the stationhouse once he was arrested. PO Douglas later stated that Sgt. Tysdal did arrive at the precinct after PO Douglas began arrest processing and that Sgt. Tysdal had been on-scene when § 87(2)(b) was arrested. PO Douglas confirmed to Sgt. Tysdal that this individual, § 87(2)(b) was the individual he saw enter and leave § 87(2)(b). Sgt. Tysdal did not tell PO Douglas anything about § 87(2)(b)'s behavior on-scene or what reasons he might have given for being at § 87(2)(b) or any investigative steps taken by the field team to ascertain whether or not he had permission to be there.

PO Douglas did not strip-search § 87(2)(b) or search his person and was not aware of any other officers requesting permission to strip-search § 87(2)(b). When asked if any of the other officers strip-searched § 87(2)(b), PO Douglas replied, "I don't know." None of the officers informed PO Douglas what resulted, if anything, from a search incident to lawful arrest.

PO Dennis Ferrer – Encl. 10-11

PO Dennis Ferrer was interviewed at the CCRB on March 13, 2007 (enclosure 12). He had no memo book entries pertaining to the incident.

PO Ferrer stated that on January 12, 2007 he worked 0600x1435 and was assigned to the 90 Precinct SNEU team, in a car with PO Manaloris. In his initial narrative PO Ferrer stated that at approximately 12:30 PM, PO Willabus and PO Douglas observed § 87(2)(b) purchasing narcotics in front of § 87(2)(b). § 87(2)(b) transmitted this information over the radio and that PO Ferrer and PO Manaloris then stopped and arrested § 87(2)(b). Upon further questioning, PO Ferrer stated that PO Douglas and PO Willabus did not state over the radio that § 87(2)(b) had purchased drugs but stated only, "good to go", implying that it was okay to stop § 87(2)(b).

PO Ferrer and PO Manaloris then located and stopped § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). The officers told § 87(2)(b) he was being stopped "because of an incident at § 87(2)(b)" and § 87(2)(b) immediately grew angry, complaining that the officers were "harassing" him.

When asked if PO Manaloris had his asp drawn during the incident, PO Ferrer stated that he did not. When asked if he recalled a woman being present during the incident, PO Ferrer stated that he did, but that he did not recall his interaction with her. When asked if the female commented on an asp falling to the ground, PO Ferrer stated that she did; she said that it almost hit her. He then stated that the asp was in fact his, but that he did not have it drawn and that it fell out of his back pocket when he got out of the car. PO Ferrer stated that he then apologized to the woman. Neither PO Ferrer nor PO Manaloris told the woman, "This does not concern you. Get the fuck out of here."

The officers asked § 87(2)(b) for his ID and he refused. They then asked him for his name, address and where he was coming from. He refused to answer these questions as well.

PO Ferrer initially stated that § 87(2)(b) was frisked and searched, but only after he was arrested and in cuffs. He later modified this account, stating definitively that he himself frisked § 87(2)(b) before the decision was made to arrest him. PO Ferrer stated that he conducted this frisk to check for weapons because he saw that § 87(2)(b) had a bicycle chain around his waist. PO Ferrer also suspected § 87(2)(b) had a weapon on his person because § 87(2)(b) grew angry when the officers stopped him and was noncompliant with their requests for information. When § 87(2)(b) raised his arms in the air to be frisked, PO Ferrer could see that he had a screwdriver and wrench in his back pocket. The frisk for weapons was negative.

PO Willabus arrived on-scene and confirmed that § 87(2)(b) was the individual he saw enter and exit § 87(2)(b). PO Manaloris then placed § 87(2)(b) in handcuffs. An officer – not PO Ferrer – searched § 87(2)(b)'s person with negative results. PO Ferrer got into the RMP and Sgt. Tysdal arrived and verified the arrest. PO Ferrer, PO Manaloris and PO Willabus returned to the stationhouse with § 87(2)(b).

At that 90 Precinct stationhouse, PO Manaloris and PO Willabus brought § 87(2)(b) in front of the desk and PO Ferrer went to the bathroom. Sgt. Tysdal was behind the desk when the officers presented § 87(2)(b) and PO Ferrer knew this because he saw Sgt. Tysdal behind the desk when he stepped out of the bathroom. PO Ferrer went downstairs to the SNEU office and had no further interaction with § 87(2)(b).

PO Ferrer initially stated that he did not know if § 87(2)(b) was strip-searched and stated that he did not discuss the incident with PO Manaloris or PO Willabus. He then stated that he heard that § 87(2)(b) was strip-searched and that the arrest was voided. PO Ferrer stated that he did not know who strip-searched § 87(2)(b). He then stated that PO Willabus told PO Ferrer that PO Willabus strip-searched § 87(2)(b) and did not find any contraband. PO Ferrer also heard that the desk officer had verified the strip-search, he did not recall who this desk officer was or who told him this information.

No officers used any obscenities when speaking with § 87(2)(b).

PO Michael Manaloris – Encl.

PO Michael Manaloris was interviewed at the CCRB on March 15, 2007 (enclosure 16). He had no memo book entries pertaining to the incident.

PO Manaloris stated that on January 12, 2007 he worked 0600x1435 and was assigned to the 90 Precinct SNEU team under Sgt. Tysdal, in a apprehension car with PO Ferrer. At approximately 12:50 PM PO Manaloris heard a radio transmission describing an individual and that individual's "direction of flight." The radio transmission did not indicate that this individual had engaged in a drug transaction, but stated "good to go." PO Manaloris stated that whenever a member of the SNEU team puts over a description of an individual, it is understood that the individual has engaged in a drug transaction and should be stopped. Also, the area in which the officers were working, in particular, the building they were watching, is a heavily drug-prone location in which "everybody" going into the building is engaging in drug transactions. In this particular instance, PO Manaloris did not recall the exact circumstances, but stated that there was "talk of a hand to hand" after the subject was stopped.

PO Manaloris and PO Ferrer saw the individual – § 87(2)(b) – and exited their vehicle, at which point PO Ferrer's asp fell out of his pocket onto the ground. A female walking by complained that the asp had almost struck her and PO Ferrer apologized. Neither PO Ferrer nor PO Manaloris told the female to "mind her fucking business" or "get the fuck out of here". PO Ferrer and PO Manaloris then stopped § 87(2)(b) who immediately became irate and belligerent, "making a huge scene" and stating that his father was a judge and he would "have (the officers') jobs". PO Manaloris acted as a "look out" standing a few feet back while PO Ferrer interacted with § 87(2)(b). PO Manaloris told § 87(2)(b) to calm down and PO Ferrer frisked him because § 87(2)(b) "had a lot of clothing" and the officers did not know if he had a gun on him and for that reason feared for their safety. PO Manaloris stated that any time he stops an individual he gives them "a real quick pat" to check for a weapon.

PO Willabus arrived on scene and confirmed that § 87(2)(b) was "the guy" and PO Ferrer handcuffed him, putting him under arrest for criminal trespassing. PO Manaloris again stated that while he did not witness § 87(2)(b) in a hand-to-hand transaction, "The fact is, he was in the building." PO Manaloris could not recall which officer, if any, observed § 87(2)(b) in a hand-to-hand but consistently stated that there "was talk" of such a transaction.

Sgt. Tysdal arrived on scene and verified the arrest. § 87(2)(b) was brought to the precinct, where Sgt. Tysdal went behind the desk and authorized a strip-search of § 87(2)(b). PO Willabus and PO

Manaloris then brought § 87(2)(b) to the cells, where PO Willabus removed § 87(2)(b)'s outer garments, including his pants, and checked them for contraband. Sgt. Tysdal did not take part in this but, but PO Manaloris stated that Sgt. Tysdal could see this happening from his position at the desk. When asked why, if § 87(2)(b) was arrested for trespassing, he was then strip-searched at the precinct, PO Manaloris stated that it was because § 87(2)(b) could have still had drugs on him. When asked why, if an officer had seen § 87(2)(b) engage in a drug transaction, he was arrested for trespassing and not the drug transaction itself, PO Manaloris stated, "It's (a) hand-to-hand exchange and we brought him in on the trespass."

PO Kevin Hutchinson – Encl. 12-13

PO Kevin Hutchinson was interviewed at the CCRB on March 14, 2007 (enclosure 14). He had no memo book entries pertaining to the incident.

PO Hutchinson stated that on January 12, 2007, he worked 0600x1435 and was assigned to the 90 Precinct SNEU team, riding with Sgt. Tysdal and PO Paredes. At approximately 11:50 AM, PO Hutchinson heard a description over the radio, indicating that the apprehension team was to stop an individual. The transmission did not indicate why the individual should be stopped but contained only a description of the individual and the direction he was walking. PO Hutchinson stated that whenever a member of the SNEU team puts over a description of an individual, it is understood that the apprehension team is to stop that individual.

The apprehension team radioed that they had an individual stopped at § 87(2)(b) and § 87(2)(b) and PO Hutchinson's vehicle proceeded to that location, where they saw the individual, § 87(2)(b) in handcuffs. PO Willabus, PO Ferrer and PO Manillores were on-scene and spoke with Sgt. Tysdal but PO Hutchinson did not hear what they said. Sgt. Tysdal then verified the arrest and § 87(2)(b) was placed in an RMP and taken to the stationhouse. PO Hutchinson's vehicle proceeded to the stationhouse as well.

At the stationhouse, PO Ferrer and PO Willabus stood in front of the desk with § 87(2)(b). Sgt. Tysdal went behind the desk. PO Hutchinson did not hear what, if any discussion there was regarding a strip-search but PO Willabus – alone – brought § 87(2)(b) to the cell area and strip-searched him. PO Hutchinson waited by the desk for Sgt. Tysdal to be ready to go back into the field. PO Hutchinson did not witness the strip-search and took no part in it.

PO Hutchinson did not know why § 87(2)(b) was arrested, but stated that he later heard that one of the officers had observed him in a hand-to-hand drug transaction.

PO Winston Willabus – Encl. 16-17

PO Winston Willabus was interviewed at the CCRB on March 16, 2007 (enclosure 18). He had no memo book entries pertaining to this incident.

PO Willabus stated that on January 12, 2007 he worked 0600x1435 and was assigned to an observation post with PO Kenneth Douglas as part of the 90th Precinct SNEU Team under Sgt. Tysdal. PO Willabus was the one with the binoculars and PO Douglas was calling descriptions out over the radio. PO Willabus observed an individual – identified during interview as § 87(2)(b) – exchange money with § 87(2)(b) a known drug dealer who PO Willabus has arrested before. § 87(2)(b) then handed § 87(2)(b) two small quantities of a white substance that PO Willabus recognized to be crack cocaine. § 87(2)(b) went in one direction and § 87(2)(b) went into § 87(2)(b). PO Willabus then put a description of § 87(2)(b) over the radio. Shortly thereafter, PO Willabus observed § 87(2)(b) exit § 87(2)(b) with a bicycle and PO Willabus confirmed the description he put over the air previously.

When § 87(2)(b) was 2-3 blocks away from § 87(2)(b) PO Ferrer and PO Manaloris, who were operating the prisoner van, stopped § 87(2)(b). PO Willabus responded to the location of the

stop and § 87(2)(b) was already in handcuffs at that point. PO Willabus confirmed that this was the individual he had described over the radio. § 87(2)(b) was agitated, arguing with the officers and stating that he didn't think he should have been stopped, that his father was a judge and that he was going to sue the officers. PO Willabus asked § 87(2)(b) for his ID and § 87(2)(b) refused to provide it. PO Willabus asked § 87(2)(b) why he had been inside of § 87(2)(b) and § 87(2)(b) did not provide an answer because "he was just too busy being upset." PO Willabus told the officers, "Just put him in the car." § 87(2)(b) was placed in the back of PO Ferrer's and PO Douglas's RMP. Sgt. Tysdal responded to the location. PO Willabus told Sgt. Tysdal that § 87(2)(b) was the individual he described over the radio and explained what he had observed. Sgt. Tysdal then verified the arrest.

PO Willabus rode with § 87(2)(b) back to the precinct, where § 87(2)(b) was brought before the desk. PO Willabus did not perform a search incident to lawful arrest, did not witness § 87(2)(b) being searched on-scene, did not know if § 87(2)(b) was searched on-scene prior to PO Willabus's arrival, did not know if § 87(2)(b) was searched in front of the desk and did not himself search § 87(2)(b) Willabus's pockets prior to strip-searching him. PO Willabus did not recall who the desk officer was, but stated that Sgt. Tysdal was present and authorized a strip-search of § 87(2)(b) based on the fact that PO Willabus believed that § 87(2)(b) still had drugs on him. PO Willabus stated that Sgt. Tysdal generally enters the prisoner information into the command log. PO Willabus was shown a copy of the command log from this incident and verified that there was no entry regarding a strip-search.

PO Willabus escorted § 87(2)(b) to the bathroom in the holding cell area and directed him to remove all of his clothing down to his boxer shorts and to remove his socks, turn them inside out and put them back on. § 87(2)(b) did not remove his boxer shorts and his genitals and anus were not exposed. No drugs were recovered during this search.

PO Willabus later found out that § 87(2)(b)'s arrest was voided but § 87(2)(b) never gave PO Willabus the name or address of any individual who he was visiting at § 87(2)(b). After the strip-search, PO Willabus spoke with § 87(2)(b) who told him that he was visiting a friend at § 87(2)(b). PO Willabus then told § 87(2)(b) "If you had just said all of this, you know, you went to see somebody in such and such apartment then a lot of this could have been resolved before you even came back to the precinct."

PO Willabus confirmed that § 87(2)(b) was arrested for criminal trespass. PO Willabus stated that he was not arrested for the drug transaction because PO Willabus did not recover any drugs during the strip-search. PO Willabus stated that the charges recorded in the on-line booking sheet would have reflected the criminal trespass because the information is entered after the officers "do everything (they) need to do", and by that time they had not recovered any drugs.

Sgt. Kenneth Tysdal – Encl. 18-19

Sgt. Kenneth Tysdal was interviewed at the CCRB on April 5, 2007 (enclosure 22). His memo book entries for January 13, 2007 (enclosure 21) indicate that his exact tour of duty was 06:00 to 14:57. At 12:50 PM, he made an entry for § 87(2)(b)'s arrest, and the entry indicates that a strip-search was authorized.

Sgt. Tysdal stated that on January 12, 2007, he worked 0600x1615 and was assigned as the supervisor of the 90th Precinct SNEU team. Sgt. Tysdal was in a black Crown Victoria with PO Willabus and PO Hutchinson. At 10:25 AM, PO Willabus switched with PO Ruth Paredes, who was initially in the observation post, and she joined Sgt. Tysdal and PO Hutchinson in the Crown Victoria.

At approximately 12:50 PM officers were in the vicinity of § 87(2)(b) a location known for the sale of crack cocaine. The observation team put over a description of an individual – later identified as § 87(2)(b) – who had just purchased narcotics. Sgt. Tysdal did not recall if the observation post specifically stated that § 87(2)(b) had purchased narcotics or if they said "good to go".

Sgt. Tysdal responded to the location of the stop, where § 87(2)(b) was already in handcuffs. PO Willabus responded to the location as well and identified § 87(2)(b) as the individual he observed and described over the radio. Sgt. Tysdal did not recall exactly what PO Willabus told him, but stated that he would not have verified the arrest if PO Willabus had not articulated that he observed § 87(2)(b) in a drug transaction. Sgt. Tysdal did not see § 87(2)(b)'s demeanor on-scene, but the officers told him that § 87(2)(b) had been irate and uncooperative when stopped.

Sgt. Tysdal stated that the officers did not recover any drugs on § 87(2)(b) in the field and that, once they returned to the precinct, PO Willabus approached Sgt. Tysdal and asked if he could strip-search § 87(2)(b) because he was fidgeting in the backseat of the catch car. Based on this information, as well as the fact that the product they were looking for was tiny twists of crack cocaine and for the safety of § 87(2)(b) and the other prisoners in the cell, Sgt. Tysdal authorized the strip-search. The officers did not articulate any other reasons that they believed § 87(2)(b) to have secreted contraband on his person in such a way that it would not have been discovered in a standard search.

Sgt. Tysdal did not recall if PO Willabus described a tiny twist of crack cocaine in the transaction, but based on prior arrests, Sgt. Tysdal knows that this is the type of product sold at that location. Additionally, the arrest location was three blocks from § 87(2)(b) and § 87(2)(b) would have had ample time to secrete the drugs on his person. None of the officers told Sgt. Tysdal that they saw § 87(2)(b) doing this, but it was possible, based on the circumstances.

Sgt. Tysdal was shown a copy of the 90th Precinct command log entry for § 87(2)(b)'s arrest and stated that the handwriting was not his, but that of the desk officer, Sgt. Monahan.

Sgt. Tysdal stated that generally the desk officer will enter pedigree information for a defendant but that if that officer is busy, Sgt. Tysdal will do it himself. If a strip-search is authorized, either Sgt. Tysdal or the desk officer will note it in the command log. Sgt. Tysdal confirmed that there was no notation of a strip-search in the command log entry for § 87(2)(b).

The investigator noted that the arrest report, complaint report and command log entries regarding this arrest all indicated that § 87(2)(b) was arrested for trespassing inside of § 87(2)(b) but that further investigation revealed he in fact had permission to be there and the arrest was voided. The investigator asked Sgt. Tysdal why – if the officers saw the hand to hand exchange and had the probable cause for a drug arrest, why did they arrest § 87(2)(b) for trespassing. Sgt. Tysdal stated, “I guess once we, our experience with the DA’s office, that we knew it was going to be a dismissed case and we were not going to be able to prove a *prima facie* case. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Sgt. Tysdal stated that the arrest and pedigree information is entered into the command log when the defendant is first brought into the precinct, as the defendant is standing in front of the desk. He also affirmed that § 87(2)(b) was strip-searched following his being brought before the desk. Sgt. Tysdal stated that the trespass charge was “irrelevant” at the time § 87(2)(b) was brought before the desk because he was arrested for drugs. The investigator again asked if a drug charge would have been reflected in the command log if the officers observed § 87(2)(b) in a hand-to-hand as well as trespassing. Sgt. Tysdal stated that it would. Sgt. Tysdal then stated, “In this case, because they didn’t initially recover any drugs, they put the trespass down.”

Sgt. Tysdal stated that he would not authorize a strip-search based solely on his officers observing a defendant entering and exiting a building.

Sgt. Tysdal stated that although both he and Sgt. Monahan are sergeants, Sgt. Monahan was on the desk and had to give the final authorization for the strip-search. Sgt. Tysdal reiterated to Sgt. Monahan what PO Willabus had told him and Sgt. Monahan approved the strip-search. PO Willabus was present at the desk when this happened.

After § 87(2)(b) was brought to the stationhouse he became more cooperative and told the officers that he was visiting a friend in the building. PO Willabus called and confirmed that the friend had given § 87(2)(b) permission to be there so he was released and the arrest was voided.

Sgt. Edward Monahan – Encl. 20-21

Sgt. Edward Monahan was interviewed at the CCRB on March 22, 2007 (enclosure 20). His memo book entries for January 13, 2007 (enclosure 19) indicate that from Monday, January 8, 2007 to Friday, January 12, 2007, he was assigned to “training”. There are no entries pertaining to the incident.

Sgt. Monahan stated that on January 12, 2007 he worked 0650x1552 and was assigned as the training officer in the 90th Precinct and relieved the desk officer at meal. Sgt. Monahan viewed a copy of the command log for that day and verified that he was on the desk at 11:35 AM and that § 87(2)(b) was brought before the desk at 12:40 PM. Sgt. Monahan also verified that both of these entries were in his hand writing. Sgt. Monahan was shown a photograph of § 87(2)(b) and Sgt. Monahan stated that he did not recognize the individual in the photograph. When told that this was the individual arrested during this incident and brought before the desk, Sgt. Monahan then stated that he recognized § 87(2)(b) as the individual involved in this incident.

At approximately 12:40 PM Sgt. Tysdal and his SNEU team brought § 87(2)(b) in front of the desk and Sgt. Tysdal told Sgt. Monahan that his team had witnessed § 87(2)(b) engage in a hand-to-hand drug transaction with a known drug dealer. Sgt. Monahan stated, “They just, they told me they saw a hand-to-hand. I don’t know, I don’t recall if they saw drugs or not.” Sgt. Tysdal’s team searched § 87(2)(b)’s outer clothing in front of the desk with negative results but believed that § 87(2)(b) still had drugs on him. Sgt. Tysdal asked Sgt. Monahan if he would authorize a strip-search. Sgt. Monahan did not recall what specific questions he asked the officers. The officers did not articulate why they believed § 87(2)(b) had secreted drugs upon his person as opposed to tossing them to the ground or disposing of them in another fashion. Other than the fact that the officers observed § 87(2)(b) in what they believed to be a hand-to-hand drug transaction, Sgt. Monahan did not recall the officers articulating any reason to believe that § 87(2)(b) had secreted drugs on his person such that they would not be recovered in a conventional search. However, Sgt. Monahan knew these to be experienced officers and knew that § 87(2)(b) was arrested in a known drug location where these officers had made numerous previous arrests.

Sgt. Monahan confirmed that per departmental guidelines, a supervisor may authorize a strip-search only when an arresting officer has articulated a reasonable suspicion, beyond probable cause for the arrest, that the individual is concealing contraband or a weapon. Sgt. Monahan authorized the strip-search based on the information provided by Sgt. Tysdal, which was that his team had observed the hand-to-hand, had probable cause to believe § 87(2)(b) had drugs on his person, had searched his person with negative results and searched him in front of the desk with negative results. Sgt. Tysdal and his team did not articulate other reasons that they believed § 87(2)(b) to have secreted drugs on his person in such a way that they would not be recovered by a conventional search.

Sgt. Monahan again viewed the command log and confirmed that there was no notation of a strip-search regarding § 87(2)(b)’s arrest. Sgt. Monahan stated that generally he would make such a notation but that he either forgot to do so or assumed that Sgt. Tysdal would note the strip-search in the command log.

Sgt. Monahan stated that because he was the desk officer, even though Sgt. Tysdal was present, it was Sgt. Monahan’s responsibility to authorize the strip-search.

Sgt. Monahan confirmed that had § 87(2)(b) been arrested strictly for trespassing, he would not have authorized a strip-search under those circumstances. However, because the officers articulated to him that they observed § 87(2)(b) engage in a hand-to-hand drug transaction, he authorized the strip-search.

Officers Not Interviewed

§ 87(2)(g)

Police Documents – Encl. 22-25

The Command Log indicates that PO Douglas was § 87(2)(b)'s arresting officer and that § 87(2)(b) was logged in at the 90th Precinct stationhouse at 12:40 PM. The listed charge against him is trespassing. The command log entry indicates that a warrant check produced negative results and that § 87(2)(b) was released at 3:35 PM and his arrest was voided. The command log indicates that Sgt. Monahan was on the desk when § 87(2)(b) was brought in.

The Prisoner Holding Pen Roster indicates that § 87(2)(b) was the only other prisoner present at the time § 87(2)(b) was placed in the cells - 6 prisoners had just been removed to central booking.

The Tour 2 roll call for the 90th Precinct indicates that Sgt. Kenneth Tysdal was the SNEU supervisor with PO Kenneth Douglas, PO Dennis Ferrer, PO Ruth Paredes, PO Michael Manaloris and PO Kevin Hutchinson assigned to his team. Sgt. Edward Monahan was assigned as the training sergeant.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB History – Encl. 1

None of the officers involved in this case have any substantiated allegations in their CCRB histories.

Civilian CCRB History – Encl. 2

§ 87(2)(b) has not filed any other CCRB complaints (enclosure 4).

Conclusions and Recommendations

Facts

On January 12, 2007, PO Douglas and PO Willibus saw § 87(2)(b) enter and exit the NYCHA building at § 87(2)(b) in Brooklyn at about 12:30 PM. One of them used the point-to-point radio to alert the other members of their SNEU team of § 87(2)(b)'s physical description and to say “good to go,” meaning they should stop him. PO Manaloris and PO Ferrer stopped § 87(2)(b) a few blocks away. One of these officers dropped his asp and an unknown female passerby complained that the asp had almost hit her. One of the officers responded to her. PO Manaloris and PO Ferrer questioned § 87(2)(b) about why he had been in § 87(2)(b) and asked to see his identification, § 87(2)(b) refused to answer the officers’ questions and he refused to provide his identification. When the officers asked him about drugs, he told them that he did not have any contraband on him, and told them that they could “check” him, which § 87(2)(b) explained meant that he consented to the officers frisking and searching his pockets. PO Ferrer frisked him at this time, and then, when PO Willibus arrived and confirmed that § 87(2)(b) was the individual whom he told PO Manaloris and PO Ferrer to stop, § 87(2)(b) was handcuffed and an officer searched his pockets. No contraband was found at the location. § 87(2)(b) continued to refuse to answer the officers’ questions about what he had been doing inside of the building, and Sgt. Tysdal verified his arrest and he was transported to the 90th Precinct stationhouse. He was brought before the desk officer, Sgt. Monahan, and a command log entry was prepared which indicates that the charge against him was trespassing. Sgt. Tysdal told Sgt. Monahan that he

wanted to strip-search § 87(2)(b) and Sgt. Monahan concurred, though he did not make an entry in the command log regarding the strip-search. PO Willabus conducted the strip-search. No contraband was found during the strip-search, and when § 87(2)(b) told the officers whom he had been visiting in the building, and they called to verify his story, he was released and the arrest was voided.

Disputed Facts

§ 87(2)(g)

[REDACTED]

Assessment of Evidence

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. As noted in Barry Kamins's *New York Search and Seizure*, (§ 2.02[2])(encl. ii), while the Appellate Division, First Department, has held that police officers are custodians of New York City Housing Authority buildings and have the authority to keep these buildings free of trespassers, the DeBour four-tier analysis of street encounters still holds in this setting. As in *People v. Banks* (Sup. Ct. N.Y. Co. 1997), *People v. Priester* (Sup. Ct. Bronx Co. 2000), *People v. Holland* (Sup. Ct. N.Y. Co. 1997) and *People v. Sempter* (N.Y. Crim. Ct. 2003), cited in Kamins (encl. ii), the courts have held that merely observing an individual inside a public housing building does not give police officers reasonable suspicion to effect a level three stop. In fact, in *People v. Priester*, cited above, the court ruled that having observed the defendant being present inside the building lobby, speaking to others and then leaving, *barely* gave the officers grounds for a level one request for information.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation Not Pleaded

The patrol guide dictates that a strip-search be documented in the command log, precinct of occurrence, along with other arrest information. In this case, § 87(2)(b) s strip-search was not noted in the command log entry pertaining to his arrest. However, Sgt. Tysdal did note § 87(2)(b) s strip-search in his memo book: § 87(2)(g)

Allegation A: PO Kenneth Douglas facilitated the questioning of § 87(2)(b)

Allegation B: PO Dennis Ferrer questioned § 87(2)(b)

Allegation C: PO Michael Manaloris questioned § 87(2)(b)

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED] it is recommended that **Allegation A** be closed **Unsubstantiated**, § 87(2)(g)
[REDACTED]
[REDACTED] it is recommended that **Allegations B and C** be closed **Exonerated**.

Allegation D: PO Dennis Ferrer searched § 87(2)(b)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation D** be closed **Unsubstantiated**.

Allegation E: PO Michael Manaloris spoke obscenely to § 87(2)(b) **and an unknown female.**

§ 87(2)(b) alleged that when PO Manaloris and PO Ferrer first approached him, PO Manaloris had his asp drawn and held at his side. § 87(2)(b) stated that PO Manaloris dropped the asp and an unknown female passerby complained that the asp had almost hit her. § 87(2)(b) alleged that PO Manaloris said, “Get the fuck out of here.” PO Manaloris and PO Ferrer both recalled interacting with the unknown female, but stated that it was PO Ferrer’s asp that fell on the ground, and that PO Ferrer did not have it drawn, but that it fell out of his pocket. The officers stated that PO Ferrer apologized to the woman and did not have any further interaction with her. § 87(2)(g)

[REDACTED]
[REDACTED] § 87(2)(b) also alleged that PO Manaloris cursed at him during the incident, but he stated that he could not recall the officer’s exact words. PO Manaloris denied using any discourteous language to § 87(2)(b) during the incident. PO Ferrer denied hearing PO Manaloris make any discourteous remark to § 87(2)(b)

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) Therefore, it is recommended that **Allegation E** be closed **Unsubstantiated**.

Allegation F: PO Winston Willabus detained § 87(2)(b)

Allegation G: PO Dennis Ferrer detained § 87(2)(b)

Allegation H: PO Michael Manaloris detained § 87(2)(b)

As noted in Barry Kamins's *New York Search and Seizure* (§ 2.02[2])(encl. i), the Court of Appeals, in *People v. Hicks* and *People v. Robinson*, determined that after making a *lawful* stop, a police officer may detain a suspect for a brief time while an expeditious investigation is conducted to determine whether the officer has probable cause to arrest the individual. However, if the initial stop is improper then any further detention is also improper. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations F, G and H** be closed **Substantiated**.

Allegation I: Sgt. Kenneth Tysdal authorized the strip-search of § 87(2)(b)

Patrol Guide Procedure 208-05 (encl. vi) Section C specifies that:

A strip-search will be utilized when the arresting officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. Other factors that should be considered in determining the necessity for a strip-search include the nature of the crime (serious violent felony), arrest circumstances, subject's reputation (extremely violent person), acts of violence and discoveries from previous searches.

Additionally, a finest memorandum (encl. x) issued on May 13, 2004 was read at ten consecutive roll calls and posted at all commands and stated the following:

All members of the service are reminded that under patrol guide section 208-04, a strip-search of a prisoner may not be conducted routinely in connection with an arrest and requires express authorization from a supervisor prior to being conducted. Any search in which an individual's undergarments (bra, underwear, etc...) and/or private areas are exposed or in which an individual's clothing is removed, lifted, pulled up or pulled down to expose undergarments or private areas is considered a strip-search for the purposes of this procedure.

PO Willibus strip-searched § 87(2)(b) at the 90th Precinct stationhouse. He stated that Sgt. Tysdal, his direct supervisor, authorized him to do so. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted] It is therefore
recommended that Allegation I be closed **Substantiated**.

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted] [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: